



U.S. Department
of Transportation

Research and
Special Programs
Administration

007 3 1 1995

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 11455

EXPIRATION DATE: October 1, 1997

(FOR RENEWAL, SEE 49 CFR SECTION 107.105)

1. GRANTEE: Seattle King County Disaster Team,
Seattle, WA
2. PURPOSE AND LIMITATION: This exemption authorizes the transportation in commerce of hazardous materials that exceed the 25 kg net weight limit (75 kg net weight of non-flammable compressed gases) in an inaccessible cargo compartment on a chartered aircraft when responding to or returning from an emergency or disaster situation. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Section 175.75(a)(2).
5. BASIS: This exemption is based on the application of Seattle King County Disaster Team dated April 7, 1995, submitted in accordance with 49 CFR 107.103 and the public process thereon.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Batteries, Wet non-spillable	8	UN2800	III
Engines, internal combustion	9	UN3166	None
Fire Extinguisher	2.2	UN1044	None
Oxygen, compressed	2.2	UN1072	None
Ethanol	3	UN1170	II
Diesel Fuel	3	UN1202	III
Kerosene	3	UN1223	III
Gasoline	3	UN1203	II

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7. PACKAGING AND SAFETY CONTROL MEASURES: All materials must be classed, marked and labeled in accordance with 49 CFR Part 172 and packaged in accordance with Part 173. Except Kerosene, all materials must be overpacked in rigid metal or plastic containers.
8. SPECIAL PROVISIONS: This exemption authorizes the transportation of hazardous materials that exceed the 25 kg net weight limit (75 kg net weight of non-flammable compressed gases) in an inaccessible cargo compartment on a chartered aircraft when the aircraft is responding to or returning from an emergency or disaster situation.
9. MODES OF TRANSPORTATION AUTHORIZED: Cargo only aircraft, and passenger aircraft.
10. MODAL REQUIREMENTS:

A copy of this exemption must be carried aboard each aircraft used to transport packages covered by this exemption. In accordance with the provisions of 49 CFR Part 107, Appendix B to Subpart B, paragraph 3, the shipper shall furnish a copy of this exemption to the air carrier before or at the time the shipment is tendered.

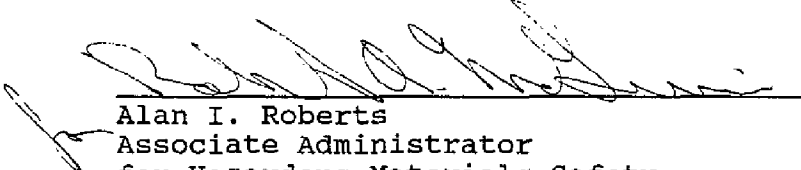
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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